

which a jury might possibly determine otherwise.’” 1 Harper & James § 4.3, pp. 305–306, quoting *Yaselli v. Goff*, 8 F. 2d 161, 162 (SDNY 1925). Indeed, in deciding whether or not to prosecute, the prosecutor performs a “quasi-judicial” function. 1 Harper & James 305; *Yaselli v. Goff*, 12 F. 2d, at 404. Judicial immunity had always been extended to grand jurors with respect to their actions in returning an indictment, *id.*, at 403, and “the public prosecutor, in deciding whether a particular prosecution shall be instituted . . . performs much the same function as a grand jury.’” *Id.*, at 404, quoting *Smith v. Parman*, 101 Kan. 115, 165 P. 633 (1917). The analogy to judicial immunity is a strong one. Moreover, the risk of injury to the judicial process from a rule permitting malicious prosecution suits against prosecutors is real. There is no one to sue the prosecutor for an erroneous decision *not* to prosecute. If suits for malicious prosecution were permitted,⁴ the prosecutor’s incentive would always be not to bring charges. Moreover, the “fear of being harassed by a vexatious suit, for acting according to their consciences” would always be the greater “where powerful” men are involved, 1 W. Hawkins, *Pleas of the Crown* 349 (6th ed. 1787). Accordingly, I agree with the majority that, with respect to suits based on claims that the prosecutor’s decision to prosecute was malicious and without probable cause—at least where there is no independent allegation that the prosecutor withheld exculpatory information from a grand jury or the court, see Part III, *infra*—the judicial process is better served by absolute immunity than by any other rule.

⁴I agree with the majority that it is not sufficient merely to set the standard of proof in a malicious prosecution case very high. If this were done, it might be possible to eliminate the danger of an unjust damage award against a prosecutor. However, the risk of having to *defend* a suit—even if certain of ultimate vindication—would remain a substantial deterrent to fearless prosecution.